

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 43-005
Amendments to Title 2, Chapter 4, Article A, Section 2-401.9(B)
of the Chickasaw Nation Code
(Officers and Employees of the Nation)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, Governor Bill Anoatubby is authorized to enter into, negotiate, modify, amend and sign grants, contracts and other agreements on behalf of the Chickasaw Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and regulations on officers and employees of the Nation with wishes to amend those rules.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves the following amendment to Title 2, Chapter 4, Article A, Section 2-401.9(B) of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

SECTION 2-401.9 INSURANCE FOR ELECTED OFFICIALS WHO LEAVE OFFICE.

A. Definitions:

1. "Insurance" shall mean life, health and dental insurance as provided by the Chickasaw Nation to its employees/elected officials under the plan in effect at the time of death or retirement of the elected official or as such plan may change throughout the remainder of the time this measure shall be applied.

2. "Retirement" shall mean leaving office, whether by design or by happenstance.

3. "Year" shall mean any portion of a year served by an elected official.

B. Death: Should an elected or retired official die, and at the time of his death he is carrying dependents on his health and dental insurance, the Nation shall pay to carry **the spouse** ~~those dependents on his health and dental insurance for a period of six (6) months after his death,~~ to give his dependents time to make arrangements for their own health and dental insurance. **until**

their death or remarriage. Any other dependents on the plan will be covered in accordance with the insurance plan guidelines.

Executed in regular session of the Chickasaw Tribal Legislature, Meeting at Ada, Oklahoma, on April 17, 2026, by a vote of 11 ayes, 0 nays, and 0 abstentions.

Connie Barker
Chairperson
Chickasaw Tribal Legislature

Nancy Elliott
Secretary
Chickasaw Tribal Legislature

Concur: Bill Anoatubby Date: APR 20 2026
Bill Anoatubby, Governor
The Chickasaw Nation

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Explanation:

This resolution extends health and dental insurance coverage for spouses and other dependents of an elected official after that official's death. Spousal coverage extends until death or remarriage. Other dependents are covered according to the insurance plan guidelines.

Presented by:

Legislative Committee,
Chickasaw Tribal Legislature